

N66604-26-Q-0181 Combined Synopsis/Solicitation

This is a combined synopsis and solicitation for commercial items prepared in accordance with the format in FAR Part 12 as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued. Request for Quotation (RFQ) number is N66604-26-Q-0181.

This requirement is solicited on an unrestricted basis as concurred with by NUWCDIVNPT's Office of Small Business Programs. The North American Industry Classification Systems (NAICS) Code is 513210, the Small Business Size Standard is 47 Million Dollars. The PSC is H270.

The Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) intends to award a Firm Fixed Priced purchase order with for EA Engineering Services on a sole source basis to Nightwing Intelligence Solutions.

Under an objective to modify an existing weapon's subsystems to be compliant with cyber security requirements, NUWCDIVNPT previously procured Nightwing's Execution Enabler (EA) with Boot Shield software, associated EA Packaging Utility Perpetual Licenses, and EA Engineering Services to modify the baseline software to meet Government requirements. The current requirement is for emergent engineering services supporting Verification and Validation (V&V) efforts as well as technical implementation support of the developing software. Nightwing retains data rights to the software it has developed thus far, which is already in use. Therefore the only alternative to procuring these services from Nightwing is to pay non-recurring costs to redevelop a new software. If the Government were to transition to a new software, duplicative costs and schedule impacts would have a detrimental impact to mission. Therefore, Nightwing is the only practicable source to meet the Governments need.

This notice is not a request for competitive quotes. All responsible sources may submit a capability statement which will be considered by the Government. A determination by the Government not to compete this acquisition based upon responses to this notice is solely within the discretion of the Government. Information received will be considered solely for the purpose of determining whether to conduct a competitive procurement in the future.

The Anticipated Contract Line Item Number (CLIN) structure is identified below:

CLIN	Description	Ceiling Qty	Estimated Period of Performance
0001	Level 1 Engineering Services Support Package EA-OS + EA-TB / Boot Shield Labor	500 Hours	Date of award though 1 Year Thereafter
0002	Level 1 Engineering Services Support Package EA-OS + EA-TB / Boot Shield On-site integration & support	2 Trips	Date of award though 1 Year Thereafter
0003 (Option)	Level 0 Engineering Services Support Package EA-OS + EA-TB / Boot Shield Labor	200 Hours	1 Year after Date of Award – 2 Years after Date of Award
0004 (Option)	Level 0 Engineering Services Support Package EA-OS + EA-TB / Boot Shield On-site integration & support	1 Trip	1 Year after Date of Award – 2 Years after Date of Award
0005 (Option)	Level 0 Engineering Services Support Package EA-OS + EA-TB / Boot Shield Labor	200 Hours	2 Years after Date of Award – 3 years After Date of award
0006 (Option)	Level 0 Engineering Services Support Package EA-OS + EA-TB / Boot Shield On-site integration & support	I Trip	2 Years after Date of Award – 3 years After Date of award

Note: The Government reserves the right to amend the period of performance to accommodate early exercise of options.

Incorporated provisions and clauses are those in effect through the latest Federal Acquisition Circular (FAC). Full text of incorporated FAR/DFARS clauses and provisions may be accessed electronically at <https://acquisition.gov/far>.

The following FAR and DFARS provisions and clauses apply to this solicitation:

52.203-12 Limitation on Payments to Influence Certain Federal Transactions.
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.
52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards.
52.204-13 System for Award Management Maintenance.
52.204-19 Incorporation by Reference of Representations and Certifications.
52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.
52.209-10 Prohibition on Contracting with Inverted Domestic Corporations.
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law
52.212-1 Instructions to Offerors
52.212-2 Evaluation-Commercial Products and Commercial Services
52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services.
52.216-31 Time-and Material/Labor Hour Proposal Requirements
52.217-9 Option to Extend the Term of the Contract
52.219-28 Post-Award Small Business Program Representation.
52.222-3 Convict Labor.
52.222-35 Equal Opportunity for Veterans.
52.222-36 Equal Opportunity for Workers with Disabilities.
52.222-37 Employment Reports on Veterans.
52.222-50 Combating Trafficking in Persons.
52.232-33 Payment by Electronic Funds Transfer—System for Award Management.
52.232-1 Payments.
52.232-7 Payments under Time-and Materials and Labor Hour Contracts
52.232-39 Unenforceability of Unauthorized Obligations.
52.232-40 Providing Accelerated Payments to Small Business Subcontractors.
52.233-1 Disputes.
52.233-4 Applicable Law for Breach of Contract Claim
52.240-90 Security Prohibitions and Exclusions Representations and Certifications.
52.240-91 Security Prohibitions and Exclusions
52.240-92 Security Requirements
52.240-93 Basic safeguarding of covered contractor
52.243-3 Changes-Time-and-Materials or Labor-Hours
52.249-6 Alt IV Termination (Cost Reimbursement)
52.252-2 Clauses Incorporated by Reference.
52.252-6 Authorized Deviations in Clauses.
252.203-7000 Requirements Relating to Compensation of Former DoD Officials.
252.203-7002 Requirement to Inform Employees of Whistleblower Rights.
252.204-7003 Control of Government Personnel Work Product.
252.204-7009 Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.
252.204-7012 (Dev) Safeguarding Covered Defense Information and Cyber Incident Reporting.

252.204-7015 Notice of Authorized Disclosure of Information for Litigation Support.
252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.
252.204-7019 Notice of NISTSP 800-171 DoD Assessment Requirements
252.204-7020 NIST SP 800-171 DoD Assessment Requirements.
252.204-7021, Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements
252.204-7025, Notice of Cybersecurity Maturity Model Certification Level Requirements
252.223-7008 Prohibition of Hexavalent Chromium.
252.225-7048 Export-Controlled Items.
252.227-7015 Technical Data—Commercial Products and Commercial Services.
252.232-7010 Levies on Contract Payments.
252.243-7001 Pricing of Contract Modifications..
252.244-7000 Subcontracts for Commercial Items.
252.246-7007 Contractor Counterfeit Electronic Part Detection and Avoidance System.
252.246-7008 Sources of Electronic Parts.
252.247-7023 Transportation of Supplies by Sea

Additional terms and conditions:

Electronic Payment through Wide Area Workflow (WAWF) shall be used.

Quotes and any attachments shall be readable by Microsoft Office or Adobe Acrobat. Offeror shall include the following information with the submissions: point of contact (including phone number and email address), Contractor CAGE Code, and Contractor SAM Unique Entity ID.

Award will be made on a lowest priced technically acceptable basis. In order to be determined technically acceptable, the offeror shall:

- 1) Provide pricing for the required services in the required quantities
- 2) Have an active registration in SAM at the time of quote submission.
- 3) Have an active CMMC Level 2 (Self) assessment (or Higher Level) score within SPRS in accordance with DFARS 252.204-7021
NOTE: CMMC requirements are being phased-in over a 3-year implementation period. The offeror is on notice that on 10 November 2026 Level2 (C3PAO) will become a requirement for this procurement, and will be a condition for award of all options exercised after 10 November 2026.
- 4) Be registered in NIST with an assessment score of not more than 3 years old in accordance with DFARS 252.204-7019.
- 5) The Government will consider Past Performance information in accordance with DFARS Provision 252.213-7000, whereby negative information within Supplier Performance Risk System (SPRS) may render a quote being deemed technically unacceptable.

Quotes shall be submitted electronically via email to Hannah Murphy at Hannah.l.murphy7.civ@us.navy.mil and must be received on or before the closing date listed in this SAM Posting. Quotes received after this date and time are late and may not be considered for award. For questions pertaining to this acquisition, please contact Hannah Murphy at Hannah.l.murphy7.civ@us.navy.mil

Attachment List

- 1) DD254